IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.
Plaintiffs,
vs.
MARC M. MOSZKOWSKI
Defendant.

Case No.: 2018 CA 000543
Division: "E

DEFENDANT'S MOTION TO CLARIFY AND LIMIT COUNT 9 (ACCOUNTING) TO EXISTING RECORDS WITHIN DEFENDANT'S POSSESSION, CUSTODY, OR CONTROL; FOR TEMPORARY STAY OF ENFORCEMENT; AND FOR REMOTE APPEARANCE

Defendant, pro se, moves to clarify and limit the Count 9 directive in the Final Judgment, and states:

I. INTRODUCTION

The Final Judgment orders Defendant to "*provide a detailed accounting of all Toke Oil and Gas, S.A. transactions, with specificity, within 60 days*." Defendant has never been the custodian of "Toke" accounting ledgers, does not possess 18 years of corporate books, and in 2018–May 2019 produced all records in his possession, custody, or control. The order should be clarified to require only existing, specifically identified documents within Defendant's possession, custody, or control, not the creation of a new accounting. See Fla. R. Civ. P. 1.350; 1.280(b)(1). Enforcement should be temporarily stayed pending clarification. See Fla. R. Civ. P. 1.570. Any contempt must be conditioned on an express finding of present ability to comply. See Bowen v. Bowen, 471 So. 2d 1274, 1277–78 (Fla. 1985).

II. BACKGROUND

1. Defendant is not (and was not) the accounting custodian for “Toke Oil and Gas, S.A.”
2. From 2018 through May 2019, Defendant produced his available ESI (Electronically Stored Information) and documents.
3. Corporate ledgers, general journals, bank statements, and tax filings (if they exist) are held by corporate or third-party custodians (banks, accountants, agents), not by Defendant.
4. Defendant remains willing to re-export any discrete item that Plaintiffs identify with reasonable particularity and that is still within his control.
5. International travel and cost are significant; Defendant requests any hearing be conducted with his remote appearance under Rule 2.530.

III. ARGUMENT

A. Scope—only existing items within possession, custody, or control

(no creation duty). Rule 1.350 requires production of existing items within a party's possession, custody, or control; it does not compel a party to create new compilations or reconstruct an 18-year "accounting." Rule 1.280(b)(1) limits obligations to proportional requests.

B. Prior productions should be deemed satisfying in part; no duplicative re-production. Defendant's 2018–May 2019 productions satisfy Count 9 to the extent of materials then in his possession, custody, or control. He should not be compelled to re-produce ESI already produced.

C. Particularity and cost-shifting. If Plaintiffs believe a specific item is missing, they should identify it with reasonable particularity (sender/recipient, date range, subject, or earlier transmission). Any court-ordered re-collection or re-production should be cost-shifted absent good cause.

D. Third-party custodians. Records held by banks, accountants, or agents are more efficiently obtained by Plaintiffs via Rules 1.351 (production from non-parties), 1.410 (subpoena), and 1.310.

E. Temporary stay pending clarification. To avoid coercive consequences on an unclear directive, enforcement of Count 9 should be stayed pending entry of a clarifying order. See Rule 1.570 (court's authority over enforcement of judgments).

F. No coercive contempt without present-ability findings. Before any coercive sanction, the Court must find Defendant has the present ability to perform the specific act required. Bowen, 471 So. 2d at 1277–78.

G. Proportionality and reciprocity (Rule 1.280(b)(1); Rule 1.350): Plaintiffs limited their own custodial production to 5 years in July 2019; compelling 18 years from a non-custodian is disproportional.

In July 2019, Defendant requested DeepGulf, Inc.'s accounting records from the entities and agents who were (and are) the true custodians. Plaintiffs and/or their custodians produced five years of accounts and represented that no further production was legally required. By contrast, the Final Judgment now compels eighteen years of “accounting” from Defendant—who was never the accounting custodian—on pain of contempt. Under Rule 1.280(b)(1), discovery must be proportional to the needs of the case, considering the parties’ relative access to relevant information and whether the information is more readily obtainable from another source. See also Rule 1.350(a) (party production). The more practical and proportional path is either:

1. Require reciprocal production by Plaintiffs of their existing “DeepGulf” accounting records first (ledgers, journals, bank statements, CPA workpapers, tax filings) within their possession, custody, or control,

with third-party records obtained via Rules 1.351/1.410; or

2. **Harmonize the timeframe** to the same five-year period Plaintiffs provided in 2019, absent a particularized showing of need for a longer span.

Either approach avoids converting a non-custodian into a de facto bookkeeper and aligns with the proportionality factors (relative access, burden/expense, importance of the discovery versus the effort required).

As a 47% owner/director, Defendant previously requested on numerous occasions access to corporate books and records up to present; Plaintiffs' refusal underscores that the requested records are more readily obtained from Plaintiffs' custodians than from Defendant. See also Rule 1.280(b)(1) (considering the parties' relative access to relevant information).

IV. REQUEST FOR HEARING (REMOTE)

Defendant requests a short hearing. Pursuant to Rule 2.530, Defendant requests permission to appear by communication technology; Plaintiffs may appear in person or remotely at their option.

V. WHEREFORE / REQUESTED RELIEF

Defendant respectfully asks that the Court:

1. Clarify that Count 9 requires only existing, specifically identified records relating to "Toke Oil and Gas, S.A." within Defendant's possession, custody, or control, and does not require creation of a new accounting compilation;

2. Deem Defendant's 2018– May 2019 productions satisfying Count 9 to that extent, and confirms no obligation to re-produce ESI already produced;

3. Require Plaintiffs to identify any allegedly missing item with reasonable particularity, and provides that any ordered re-collection or re-production will be cost-shifted absent good cause;

4. Direct Plaintiffs to obtain records from third-party custodians (banks, accountants, agents) via Rules 1.351, 1.410, and 1.310;

5. Preclude coercive contempt absent an express, evidence-based finding that Defendant has the present ability to comply with the specific act required (Bowen);

6. Temporarily STAY enforcement of Count 9 pending compliance with the clarifying order and the process above (Rule 1.570);

7. Permit Defendant to appear remotely at any hearing on this motion under Rule 2.530;

8. Reciprocity / Temporal Harmonization. Order that (a) within 21 days Plaintiffs produce their existing “DeepGulf, Inc.” accounting records (ledgers, journals, bank statements, CPA workpapers, tax filings) in their possession, custody, or control, with any third-party records to be obtained via Rules 1.351/1.410; and (b) absent a particularized showing of need, any required accounting-related production by Defendant shall be limited in time to the same five-year period Plaintiffs previously produced in July 2019, without prejudice to specific, narrowly tailored requests beyond that period. and

9. Grant such other and further relief as is just.

Respectfully submitted this 23rd day of September, 2025

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M. Moszkowski

CERTIFICATE OF SERVICE

I hereby certify that, on this 23rd day of September, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

SWORN DECLARATION OF MARC M. MOSZKOWSKI REGARDING COUNT 9

1. I make this declaration on personal knowledge.

2. I was not the accounting custodian for "Toke Oil and Gas S.A."

3. I do not maintain "Toke" general ledgers, historical bank statements, or accountant work papers beyond what I previously transmitted.

4. On or about May 15, 2019, I transmitted to Plaintiffs the entirety of records then in my possession relating to "Toke," including tens of thousands of emails and attachment**s** spanning the operative period.

5. Those materials included (to the best of my recollection) correspondence, invoices, PDFs, spreadsheets, and other business records located in my email archives and local folders.

6. Since that transmission, I have not acquired any additional accounting books/ledgers for "Toke."

7. I do not possess master accounting files or third-party bank/CPA records for "Toke." To the extent such materials exist, they are held by banks, accountants, or corporate agents.

8. I do **not** have the **present ability** to “provide a detailed accounting of all transactions” beyond the records already produced.

9. I am **preserving** all electronic data within my control.

I declare under penalty of perjury that the foregoing is true and correct. Executed this 23rd day of September, 2025

Marc Moszkowski, Pro Se

M. Moszkowski